

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

COMPLAINANT'S OPPOSITION TO RESPONDENTS'
MOTION TO PERMIT ALTERNATIVE SERVICE UNDER
FEDERAL RULES OF CIVIL PROCEDURE 4(f)(3)

Complainant Samsung Electronics America, Inc. ("Complainant" or "SEA"), by its undersigned attorneys, respectfully submits its opposition to the Motion to Permit Alternative Service Under Federal Rules of Civil Procedure 4(f)(3) (the "Motion for Alternative Service") submitted by Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, "OOCL" or "Respondents") with regard to accomplishing service upon Third Party Respondent Samsung Electronics Company, Ltd. ("SEC").¹

OPPOSITION

SEA joins in SEC's opposition to OOCL's Motion for Alternative Service to object to

¹ We note that OOCL did not attempt to meet and confer with the only other Party in this action, nor did it note those efforts, or SEA's position, in its Motion in accordance with 46 C.F.R. § 502.71(a). Though SEA was notified of OOCL's intention to file the motion hours beforehand, OOCL did not seek to discuss the anticipated motion or SEA's position.

OOCL's continued abuse of this forum in an apparent effort to forestall the resolution of SEA's straightforward complaint for reparations resulting from OOCL's imposition of unreasonable and unjust demurrage and detention charges, and related damages.

The foreign service of process procedures under the Federal Rules of Civil Procedure ("FRCP") 4(f)(1) and the application of the Hague Convention on the Service Abroad of Judicial and Extrajudicial Documents (the "Hague Convention") is clear. Yet OOCL makes no mention of any efforts undertaken to comply with the Hague Convention or to otherwise comply with the Commission's Rules.² While OOCL now extolls the need to avoid delays, its argument appears to run counter to many of its recent filings (see Docs. 42, 50) and its own inaction and failure to even attempt service in accordance with the Hague Convention. The Third-Party Complaint should be dismissed for such failure, as permitted by the Commission's Rules.³

Accordingly, SEA respectfully suggests that the Presiding Officer deny OOCL's Motion for Alternative Service and grant all such other and further relief as may be just and proper.

Dated: July 1, 2025

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ Peter F. Black

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² 46 C.F.R. § 502.113(c) permits OOCL to serve the Complaint at any time after it has been filed with the Commission. OOCL filed its Third-Party Complaint on December 12, 2024 and the Commission's January 29, 2025 and February 19, 2025 letters clearly stated that the Third-Party complaint was returned to the Office of the Secretary as undeliverable or not accepted for delivery.

³ 46 C.F.R. § 502.113(d)

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
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2. Hon. Richard Ambrow - *Administrative Law Judge*
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Dated: July 1, 2025

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